EVOLVE EDGE

🔒 CONFIDENTIAL

NDA-VND-2025 | v1.0

NON-DISCLOSURE AGREEMENT

VENDOR PARTNERSHIP | MUTUAL CONFIDENTIALITY AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of 03/19/2026 by and between:

📋 **How to use this template:** Fill in all highlighted fields below. Fillable fields are marked with teal borders. Use **Ctrl+P** or the Print button to save as PDF once complete.

PARTY A (DISCLOSING PARTY)

Company Name

Evolve Edge

Address

123 Corporate Blvd

City State Zip

Authorized Representative

Title

Email

PARTY B (RECEIVING PARTY / VENDOR)

Company Name

Vendor Company Name

Address

Vendor Address

City State Zip

Authorized Representative

Title

Email

Individually referred to as a "Party" and collectively as the "Parties".

WHEREAS, the Parties wish to explore a business opportunity of mutual interest and in connection with this opportunity, one party may disclose to the other certain confidential technical and business information which the disclosing party desires the receiving party to treat as confidential.

NOW, THEREFORE, in consideration of the mutual premises and covenants contained herein, the Parties agree as follows:

1 DEFINITIONS

1.1 "Confidential Information" means any information disclosed by the Disclosing Party to the Receiving Party, either directly or indirectly, in writing, orally or by inspection of tangible objects (including without limitation documents, prototypes, samples, plant and equipment), which is designated as "Confidential," "Proprietary" or some similar designation. Information communicated orally shall be considered Confidential Information if such information is confirmed in writing as being Confidential Information within a reasonable time after the initial disclosure.

1.2 "Disclosing Party" refers to the party furnishing the Confidential Information.

1.3 "Receiving Party" refers to the party receiving the Confidential Information.

1.4 Purpose. The Confidential Information shall be used solely for the following business purpose ("Purpose"):
Describe the specific business purpose for sharing information (e.g., to evaluate a potential partnership for software development services)...

2 CONFIDENTIALITY OBLIGATIONS

2.1 Non-Disclosure. The Receiving Party agrees not to disclose any Confidential Information to any third parties without the prior written consent of the Disclosing Party.

2.2 Restricted Use. The Receiving Party agrees to use the Confidential Information solely for the Purpose described in Section 1.4 and for no other purpose.

2.3 Standard of Care. The Receiving Party shall take all reasonable measures to protect the secrecy of and avoid disclosure or use of Confidential Information in order to prevent it from falling into the public domain or the possession of persons other than those persons authorized under this Agreement.

2.4 Permitted Disclosures. Access to Confidential Information shall be restricted to those employees, directors, or professional advisers of the Receiving Party who have a specific need to know such information for the Purpose and who are bound by a written agreement or professional obligation of confidentiality at least as restrictive as this Agreement.

2.5 Subcontractors and Representatives. The Receiving Party shall be responsible for any breach of this Agreement by its employees, representatives, or subcontractors. Prior to disclosing any Confidential Information to any employee or subcontractor, the Receiving Party shall obtain the written agreement of such person to be bound by terms at least as restrictive as those set forth herein.

3 EXCLUSIONS

Confidential Information shall not include any information that the Receiving Party can prove:

3.1 Is or becomes publicly known through no wrongful act of the Receiving Party;

3.2 Was rightfully in the Receiving Party's possession or known by it prior to receipt from the Disclosing Party;

3.3 Is rightfully received by the Receiving Party from a third party without breach of any obligation of confidentiality;

3.4 Is independently developed by the Receiving Party without the use of or reference to the Confidential Information; or

3.5 Is required to be disclosed by law or court order, provided that the Receiving Party gives the Disclosing Party prompt written notice of such requirement to allow the Disclosing Party to seek a protective order or other appropriate remedy.

4 TERM AND TERMINATION

4.1 Effective Date. This Agreement shall become effective on the date first written above.

4.2 Duration of Agreement. The term of this Agreement shall be: 1 Year

4.3 Survival of Obligations. The obligations of confidentiality and non-use with respect to Confidential Information shall survive the termination or expiration of this Agreement for a period of: 2 Years

5 RETURN OR DESTRUCTION

5.1 Obligation. Upon the termination of this Agreement, or upon the Disclosing Party's earlier request, the Receiving Party shall promptly return or destroy all copies of Confidential Information.

Return all original materials and copies to Disclosing Party.

Destroy all materials and copies securely.

Provide written certification of such return/destruction within 30 days.

6 OWNERSHIP AND LICENSE

6.1 No License. Nothing contained in this Agreement shall be construed as granting or conferring any rights by license or otherwise in any Confidential Information disclosed hereunder. No license under any patent, copyright, trademark, trade secret, or other intellectual property right is granted by implication, estoppel, or otherwise by this Agreement.

6.2 Ownership. All Confidential Information shall remain the exclusive property of the Disclosing Party. The Receiving Party shall acquire no interest in such Confidential Information by virtue of this Agreement or the disclosure thereof.

6.3 No Implied Rights. Nothing in this Agreement creates an obligation on either Party to enter into any further agreement, nor does it obligate either Party to disclose any particular Confidential Information or to proceed with any transaction.

7 NO SOLICITATION

7.1 Non-Solicitation. During the term of this Agreement and for a period of 1 Year thereafter, the Receiving Party will not, directly or indirectly, solicit for employment or hire any employee of the Disclosing Party with whom it has had contact in connection with the Purpose.

8 REMEDIES

8.1 Injunctive Relief. The Parties agree that any breach of this Agreement may cause irreparable harm to the Disclosing Party for which money damages would be inadequate. Therefore, the Disclosing Party shall be entitled to seek injunctive relief to prevent or cure any breach or threatened breach of this Agreement, in addition to any other remedies available at law.

8.2 Indemnification. The Receiving Party agrees to indemnify and hold harmless the Disclosing Party from any damage, loss, cost, or liability (including legal fees) arising out of or resulting from any unauthorized use or disclosure of the Confidential Information by the Receiving Party.

9 GOVERNING LAW

9.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Select State without regard to its conflict of laws principles.

9.2 Dispute Resolution. Any dispute arising out of or in connection with this Agreement shall be resolved by:

◯ Litigation ◯ Mediation ◯ Arbitration

10 GENERAL PROVISIONS

10.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, warranties, and agreements of the Parties.

10.2 Amendments. No amendment or modification of this Agreement shall be valid or binding unless made in writing and duly signed by both Parties.

10.3 Severability. If any provision of this Agreement is found to be unenforceable or invalid under any applicable law, such unenforceability or invalidity shall not render this Agreement unenforceable or invalid as a whole, and such provision shall be changed and interpreted so as to best accomplish the objectives of such provision within the limits of applicable law.

10.4 Waiver. The failure of either Party to enforce any provision of this Agreement shall not be construed as a waiver of that Party's right to subsequently enforce such provision or any other provision.

10.5 Notices. All notices required or permitted hereunder shall be in writing and shall be deemed effectively given upon: (i) personal delivery; (ii) one business day after transmission by facsimile or email with confirmation of transmission; or (iii) three business days after deposit with a nationally recognized overnight courier, addressed to the Parties at the addresses set forth in the Preamble above.

10.6 Counterparts & Electronic Signatures. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one instrument. Electronic signatures shall have the same legal force and effect as original signatures.

10.7 Force Majeure. Neither Party shall be liable for delays or failures in performance caused by circumstances beyond its reasonable control, including acts of God, natural disasters, pandemics, war, or governmental actions.

10.8 Assignment. Neither Party may assign this Agreement or any rights hereunder without the prior written consent of the other Party. Any unauthorized assignment shall be void.

SCHEDULE A — PERMITTED BUSINESS PURPOSE

Describe the specific business purpose for which Confidential Information may be disclosed and used:

e.g., Evaluation of a potential software development services partnership between the parties, including technical assessments, proof-of-concept work, and commercial negotiations...

SCHEDULE B — CATEGORIES OF CONFIDENTIAL INFORMATION

The following categories of information are specifically included (check all that apply):

- Financial data and projections
- Technical specifications & source code
- Business strategies and plans
- Customer and client lists
- Pricing and commercial terms
- Personnel information
- Intellectual property & trade secrets
- Regulatory and compliance data
- Other: Specify other category...

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

EVOLVE EDGE (DISCLOSING PARTY)	VENDOR (RECEIVING PARTY)
Sign Here	Sign Here

Printed Name	Printed Name
Title	Title
Date mm/dd/yyyy	Date mm/dd/yyyy

✓ ACKNOWLEDGED & AGREED

🔒 CONFIDENTIAL — FOR AUTHORIZED PARTIES ONLY

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